



## Forthcoming judgments and decisions

The European Court of Human Rights will be notifying in writing nine judgments on Tuesday 19 November 2019 and 32 judgments and/ or decisions on Thursday 21 November 2019.

*Press releases and texts of the judgments and decisions will be available at **10 a.m.** (local time) on the Court's Internet site ([www.echr.coe.int](http://www.echr.coe.int))*

### Tuesday 19 November 2019

#### [K.O. and V.M. v. Norway \(application no. 64808/16\)](#)

The applicants, Mr K.O. and Ms V.M., are Norwegian nationals who were born in 1974 and 1986 respectively.

The case concerns the authorities' decision to take their daughter into care and their limited contact rights.

When the applicants' daughter was born, in January 2015, the child welfare services arranged for Ms V.M. to stay at a family centre, given concerns about her mental health, drug abuse and domestic disputes with Mr K.O.. However, after a few weeks, Ms V.M. apparently withdrew her consent to stay at the centre and the child welfare services decided to place the applicants' daughter in care on an emergency basis.

Those services then applied to the County Social Welfare Board requesting that the child be placed in a foster home. In May 2015 the Board, comprised of a lawyer qualified to act as a professional judge, two psychologists and two laypeople, granted the request. The Board heard 11 witnesses over two days and the parents were present and represented by counsel. The Board concluded that it would be in the child's best interests to be placed in a foster home.

The applicants unsuccessfully challenged the decisions on emergency and foster care in court.

In particular, in December 2015 the City Court, comprised of a professional judge, a lay person and a psychologist, concluded that the applicants presented a number of risks, making it inadvisable to return their daughter to them. The court found that both parents had had a history of drug abuse, psychological problems and domestic disputes. Previous attempts to help them overcome their problems had been unsuccessful and they had had difficulties in cooperating with the welfare authorities. The father had also been convicted of serious crimes, including violence and threats.

Both the Board and the City Court considered that the foster care would be long-term and therefore that it would not be in the child's interests for the applicants to be given extensive contact rights. However, the City Court increased the visits fixed by the Board to two hours, six times per year in view of the positive feedback on interaction during previous contact sessions.

The child was ultimately returned to her parents following a decision by the City Court in March 2018 to lift the care order. The City Court noted two expert reports that the parents' ability to care for the child was good and stable and that they had agreed to assistance measures.

Relying on Article 8 (right to respect for private and family life) of the European Convention on Human Rights, the applicants complain about the decision to take their daughter into care and to only grant them very limited contact rights.

### [Obote v. Russia \(no. 58954/09\)](#)

The applicant, Andrey Obote, is a Russian national who was born in 1986 and lives in Mozhaysk (Moscow Region, Russia).

The case concerns his prosecution for taking part in a flash mob, which the courts viewed as a static demonstration requiring previous notification.

Mr Obote and six other people gathered in front of the Office of the Russian Government in January 2009 in what the applicant describes as a flash mob. They had their lips covered with adhesive tape and each held a blank sheet of paper. The police ordered the group to disperse and when Mr Obote asked for the reason for that order he was taken to the police station.

He was charged under the Code of Administrative Offences for failing to give prior notification of a public gathering, as required by the Public Events Act. A court subsequently fined him 1,000 Russian roubles (about 22 euros at the time). The court found that he had taken part in a static demonstration and that he had breached the procedure for public events. It rejected his argument that the flash mob had not counted as involvement in a public event.

Mr Obote appealed against the judgment, challenging the applicability of the Public Events Act and contesting the fine. The appeal court upheld the first-instance judgment.

The applicant complains that the authorities' putting an end to the flash mob and prosecuting him for an administrative offence violated his rights under Article 11 (freedom of assembly and association) of the European Convention.

### [Razvozhayev v. Russia and Ukraine and Udaltsov v. Russia \(nos. 75734/12, 2695/15, and 55325/15\)](#)

The applicants, Leonid Razvozhayev and Sergey Udaltsov, are Russian nationals who were born in 1973 and 1977 respectively and live in Moscow.

The case concerns their arrest and sentencing to prison for "mass disorder" for their part in May 2012 protests and resultant disturbances in central Moscow. Mr Razvozhayev also complains about his alleged abduction by Russian agents in Ukraine so he could be returned to Russia.

Mr Udaltsov was one of the organisers of a rally planned for 6 May 2012 against allegedly rigged parliament and presidential elections. The rally was to proceed down several streets in Moscow and end with a meeting at an area including the park at Bolotnaya Square and Bolotnaya embankment.

On the day of the march, which included thousands of people, the protesters found that the police had blocked off the square, leaving access only to the embankment. Leaders of the rally, including the second applicant, held a brief sit-down protest, while other participants tried to break through the cordon around the square. The police eventually declared the meeting closed, with riot police being employed. There were also various confrontations between demonstrators and the police. The second applicant and other leaders of the protest were arrested.

The authorities began an investigation into mass disorder. The second applicant was placed under house arrest from February 2013 until his conviction at first-instance in July 2014.

The first applicant, a political activist who was an assistant at the time to a State Duma deputy, went to Kyiv in October 2012 where he planned to apply for asylum. He alleges that he was abducted by unidentified people, forced into a minibus and driven back to Russia against his will where he was forced into making a confession that he had plotted political unrest and violence.

In July 2014 the applicants were found guilty of organising mass disorder on 6 May 2012 and each sentenced to an aggregate of four and half years in prison. Their appeals were rejected, ending with the Supreme Court declining in January 2016 to hold supervisory review proceedings of their cases.

The first applicant raises complaints about his alleged abduction and alleged lack of a proper investigation by either Russia or Ukraine under Article 3 (prohibition of torture and of inhuman or degrading treatment) and Article 5 (right to liberty and security) of the European Convention on Human Rights. He also relies on Article 3 to complain of a lack of medical treatment in pre-trial detention and of the effects on his health of the intensive schedule of his trial hearings.

Both applicants complain under Article 5 about their pre-trial detention, with the second applicant referring to his lengthy period of house arrest, and under various provisions of Article 6 (right to a fair trial) about their trial on charges of mass disorder.

Under Article 8 (right to respect for private and family life), the first applicant complains about not being granted leave from pre-trial detention to visit his dying mother or to attend her funeral and that he was sent to serve his prison sentence in Krasnoyarsk, far from his home city Moscow.

The applicants rely on Article 10 (freedom of expression) and Article 11 (freedom of assembly and association) to complain of being found liable for the disorder at the site of the protest. The second applicant also raises a complaint under Article 18 (limitation on use of restrictions on rights) in relation to his arrest and prosecution. The second applicant relies on Article 1 of Protocol No. 1 (protection of property) in relation to a court attachment order on his assets.

#### [T.K. and S.R. v. Russia \(nos. 28492/15 and 49975/15\)](#)

The applicants, Mr T.K. and Mr S.R., are Kyrgyz nationals. They were born in 1957 and 1986 and live in Verkhneye Mukhanovo, Oryol Region, and Elektrogorsk, Moscow Region, respectively.

The case concerns the applicants' allegation that they risk ill-treatment if extradited to Kyrgyzstan because they belong to the Uzbek ethnic minority who have been persecuted by the authorities since inter-ethnic clashes in 2010.

Mr T.K. arrived in Russia in 2010, while Mr S.R. arrived in 2011. They were apprehended, respectively, in 2013 and 2014 because they were wanted in Kyrgyzstan on charges of aggravated misappropriation (Mr T.K.) and several counts of aggravated robbery, destruction of property and murder (Mr S.R.).

In the ensuing proceedings concerning the applicants' extradition and their requests for refugee status, they alleged that they were at risk of persecution and ill-treatment in Kyrgyzstan because they belonged to a vulnerable ethnic group. The courts, prosecution and migration authorities assessed these claims but dismissed them.

In particular, in final decisions of 2015 the courts found that the general human-rights situation in Kyrgyzstan did not as such preclude extradition. Furthermore, they found that both applicants had been charged with common crimes which were unrelated to ethnic or political issues. Moreover, Mr T.K. had been accused of a financial crime which pre-dated the 2010 clashes, and Mr S.R. had travelled from Russia to Kyrgyzstan between 2011 and 2014 without problem.

The courts also stressed that they were in any case satisfied with the assurances provided by the Kyrgyz authorities that the applicants would not be ill-treated and that Russian diplomatic staff would have access to their place of detention to monitor their situation.

The applicants' extradition was, however, stayed in June and October 2015, respectively, on the basis of an interim measure granted by the European Court of Human Rights under Rule 39 of its Rules of Court, which indicated to the Russian Government that they should not be removed for the duration of the proceedings before it.

The applicants were released from detention in 2014 and 2015.

Relying on Article 3 (prohibition of torture and of inhuman or degrading treatment), the applicants complain that their removal to Kyrgyzstan would put them at real risk of ill-treatment, alleging in particular that the Kyrgyz authorities' assurances were unreliable.

#### [Nejdet Atalay v. Turkey \(no. 76224/12\)](#)

The applicant, Mr Nejdet Atalay, is a Turkish national who was born in 1978 and lives in Batman.

The case concerns his criminal conviction for propaganda in favour of the PKK (Kurdistan Workers' Party, an illegal armed organisation).

On 23 May 2006 the public prosecutor of Diyarbakır brought proceedings against Mr Atalay for acts he was alleged to have committed during a demonstration on 28 March 2006 in Diyarbakır at the time of the funeral of four members of the PKK who had been killed during clashes with the police.

On 11 March 2008 the Assize Court found Mr Atalay guilty of the offence of pro-PKK propaganda and gave him a 10-month prison sentence. It took the view that he had espoused the demands of the demonstrators and had participated in their illegal actions. The Court of Cassation upheld the judgment.

The applicant complains that his conviction breached his right under Article 10 (freedom of expression). Relying on Article 6 § 1 (right to a fair trial), he alleges that the length of the criminal proceedings failed to satisfy the reasonable time requirement.

Thursday 21 November 2019

#### [Papargyriou v. Greece \(no. 55846/15\)](#)

The applicant, Georgia Papargyriou, is a Greek national who was born in 1952.

The case concerns the length of the criminal proceedings against Ms Papargyriou.

In 2004 criminal proceedings were brought against Ms Papargyriou for repeated acts of forgery and misappropriation of funds committed in the course of her professional duties. A judicial investigation was opened. On 12 November 2004 Ms Papargyriou appeared before the police.

In 2012 the Indictments Division of the Criminal Court ordered the extension of the judicial investigation. Subsequently, in 2013, an additional judicial investigation into various charges was ordered.

In 2015 the Indictments Division of the Court of Appeal discontinued the criminal proceedings over certain counts of misappropriation committed in the course of a professional activity. It also decided not to indict Mrs Papargyriou on the other charges against her.

Relying on Article 6 § 1 (right to a fair hearing within a reasonable time), Ms Papargyriou complains about the length of the criminal proceedings against her between 2004 and 2015.

#### [Sailing Club of Halkidiki "I Kelyfos" v. Greece \(nos. 6978/18 and 8547/18\)](#)

The first applicant, the "I Kelyfos" Sailing Club of Halkidiki, is a group of boat owners who rent moorings in Porto Carras marina in Sithonia (Halkidiki). The second applicant, Mr Dimitrios Papafilippou, is a boat owner, member of the sailing club and the chairman of its board of directors, as well as being its legal representative.

The case concerns legal proceedings brought by them against an increase in mooring and berthing fees charged by the limited company which runs the marina, the Porto Carras Marina company.

In 2010 the marina's management company raised the mooring and berthing fees charged to boat owners by a large amount. According to the applicants, only the State, as owner of all the country's

ports, was entitled to run marinas or entrust their management to third parties through a statutory procedure.

Over time the Porto Carras Marina submitted a number of successive pricelists, all approved by ministerial decision, each time increasing the fees.

On 27 October 2012 and on 3 July 2012 the sailing club brought proceedings in the Supreme Administrative Court for the annulment of the ministerial decisions which had approved the price rises.

On 8 August 2013 a law abolished the obligation for pricelists to be approved by ministerial decision and required that they simply be notified to the Ministry of Tourism. In 2014 the law abolished any obligation of notification and approval by the Ministry.

In two judgments the Supreme Administrative Court decided that there was no case to answer in the proceedings brought by the sailing club, noting that the law had abolished the obligation to have pricelists approved by the Ministry of Tourism and that the validity of the previous approval decisions had expired.

For its part, the Porto Carras Marina company brought civil proceedings against members of the sailing club for payment of unpaid mooring and berthing fees.

Relying on Article 6 § 1 (right to a fair trial), the applicants complain that their right of access to a court has been breached.

The Court will give its rulings in writing on the following cases, some of which concern issues which have already been submitted to the Court, including excessive length of proceedings.

These rulings can be consulted from the day of their delivery on the Court's online database [HUDOC](#).

They will not appear in the press release issued on that day.

## Tuesday 19 November 2019

| Name                           | Main application number |
|--------------------------------|-------------------------|
| Geglis v. Lithuania            | 52815/15                |
| Znakovas v. Lithuania          | 32715/17                |
| Gkoutas and Gkounta v. Turkey  | 8934/13                 |
| Yurtdaş and Söylemez v. Turkey | 9662/10                 |

## Thursday 21 November 2019

| Name                                                      | Main application number |
|-----------------------------------------------------------|-------------------------|
| P.R. v. Austria                                           | 200/15                  |
| Dumagas Transport S.A. v. Bulgaria                        | 59271/11                |
| M.M. v. Croatia                                           | 4955/15                 |
| Ažukaitienė v. Lithuania                                  | 59764/13                |
| Šatrovienė v. Lithuania                                   | 57588/13                |
| Valentina Roșca v. the Republic of Moldova                | 36712/10                |
| Alminovich v. Russia                                      | 24192/05                |
| Akbaba and Metin v. Turkey                                | 38850/09                |
| Akmeşe and Eğitim ve Bilim Emekçileri Sendikası v. Turkey | 2575/08                 |
| Anıl v. Turkey                                            | 3690/11                 |

| Name                                       | Main application number |
|--------------------------------------------|-------------------------|
| Atalay v. Turkey                           | 46428/13                |
| Azarkan v. Turkey                          | 42403/09                |
| Baysan v. Turkey                           | 31264/10                |
| Çiçekçi and Others v. Turkey               | 24011/12                |
| Demir and Others v. Turkey                 | 42375/11                |
| Ebem v. Turkey                             | 46457/13                |
| Epözdemir and Beştaş Epözdemir v. Turkey   | 49425/10                |
| Florya Embellishment Association v. Turkey | 40663/12                |
| Irmak and Aktaş v. Turkey                  | 21495/10                |
| Kaya v. Turkey                             | 59738/10                |
| Kazan v. Turkey                            | 9909/13                 |
| Köksal v. Turkey                           | 14028/06                |
| Koku v. Turkey                             | 47138/10                |
| Öner v. Turkey                             | 48517/12                |
| Özbilgiç v. Turkey                         | 15023/09                |
| Özen v. Turkey                             | 21731/18                |
| Soydan and Others v. Turkey                | 61484/11                |
| Korona-Servis, TOV v. Ukraine              | 250/10                  |
| Melnyk v. Ukraine                          | 28412/10                |
| Smilyanskaya v. Ukraine                    | 46196/11                |

This press release is a document produced by the Registry. It does not bind the Court. Decisions, judgments and further information about the Court can be found on [www.echr.coe.int](http://www.echr.coe.int). To receive the Court's press releases, please subscribe here: [www.echr.coe.int/RSS/en](http://www.echr.coe.int/RSS/en) or follow us on Twitter [@ECHRpress](https://twitter.com/ECHRpress).

#### Press contacts

[echrpress@echr.coe.int](mailto:echrpress@echr.coe.int) | tel: +33 3 90 21 42 08

Tracey Turner-Tretz (tel: + 33 3 88 41 35 30)

Denis Lambert (tel: + 33 3 90 21 41 09)

Inci Ertekin (tel: + 33 3 90 21 55 30)

Patrick Lannin (tel: + 33 3 90 21 44 18)

**The European Court of Human Rights** was set up in Strasbourg by the Council of Europe Member States in 1959 to deal with alleged violations of the 1950 European Convention on Human Rights.